

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26

REJECTED FILING
This document received but
WILL NOT be considered
COURT OF APPEALS NO. 87007-6
DIVISION I
OF THE STATE OF WASHINGTON

ZACKARIAH J. BENNETT,

Petitioner,

and

MELVINA MANNING,

Respondent.

RESPONDENT'S ANSWER

Nancy A. Gass
WSBA No. 49685
Attorney for Respondent

O.W. Hollowell & Associates
P.O. Box 1041
4471 Tolt Avenue
Carnation, WA 98014
(425) 333-4848

Table of Contents

Introduction.....3

Argument.....3

Relief requested.....4

Cases

Strode v. Gleason, 9Wn. App. Strode v. Gleason, 510 P.2d 250, 9 Wn.App. 13 (Wash. App. 1973) at p. 213

1
2
3
4 INTRODUCTION

5 COMES NOW, **MELVINA MANNING**, by and through her attorney of record, **NANCY A**
6 **GASS**, and responds to Appellant, **ZACKARIAH BENNETT'S** request to overturn the Summary
7 Judgment entered on July 3, 2024.

8 ARGUMENT

9 Ms. Manning is satisfied with her pleading that resulted in the Court entering Summary
10 Judgment. She would just like to highlight a few brief points to the court:

11 Ms. Manning disagrees with Mr. Bennett's claim that the trial court failed to view the
12 evidence in a light most favorable to the non-moving party. As the trial court indicated
13 in its order, the facts are undisputed. Mr. Bennett's parental rights were voluntarily
14 terminated. He has no claim against Ms. Manning with respect to his biological son.
15 Ms. Manning has had continuous custody of the child in question since 2008 when the
16 father went to prison in Colorado and the child's mother sought rehab for drug
17 addiction.

18 Mr. Bennett voluntarily relinquished his parental rights while serving time in the King
19 County Jail in March 2013.

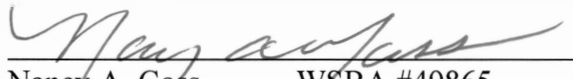
20 Mr. Bennett erroneously relies on *Strode v. Gleason*. However, that case stands for the
21 fact that the cause of action arises when the parent becomes aware that that the child no
22 longer has affection for the parent. *Strode v. Gleason*, 9Wn. App. Strode v. Gleason, 510
23 P.2d 250, 9 Wn.App. 13 (Wash. App. 1973) at p. 21. In this case, Mr. Bennett was
24 turned away from the child's home on June 23, 2019. More than three years passed
25 before Mr. Bennett filed his suit against Ms. Manning. The statute of limitations had
26 run.

Mr. Bennett made his allegations against Ms. Manning to the court that heard her
request for a domestic violence protection order. Ms. Manning filed her written response
to said allegations. The fact that the court chose not to take oral testimony on such
allegations does not mean the court did not consider them.

RELIF REQUESTED

Ms. Manning respectfully requests the Superior Court's Order granting Summary Judgment be upheld because Mr. Bennett voluntarily relinquished his parental rights and thus does not have a cause of action against Ms. Manning.

Respectfully Submitted this 23rd day of June 2025:


Nancy A. Gass WSBA #49865
Attorney for Respondent, Melvina Manning

1 I, Nancy A. Gass, attorney of record for Respondent Melvina Manning in the above-entitled
2 matter declare under penalty of perjury under the laws of The State of Washington the
3 following:

- 4 1. The word count of the responsive brief is 506 inclusive of the title page and associated
5 tables.

6
7  6/23/25
8 Nancy A. Gass WSBA #49865
9 Attorney for Respondent, Melvina Manning
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26

O.W. HOLLOWELL & ASSOCIATES

June 23, 2025 - 10:38 AM

Transmittal Information

Filed with Court: Court of Appeals Division I
Appellate Court Case Number: 87007-6
Appellate Court Case Title: Zackariah Bennett, Appellant v. Melvina Manning, Respondent

The following documents have been uploaded:

- 870076_Answer_Reply_to_Motion_20250623103729D1721113_0837.pdf
This File Contains:
Answer/Reply to Motion - Answer
The Original File Name was Manning Signed Respondents answer.pdf

A copy of the uploaded files will be sent to:

- zackjbennett@gmail.com

Comments:

Sender Name: Yamilet Desiderio - Email: carnationlaw@comcast.net

Filing on Behalf of: Nancy Ann Gass - Email: carnationlaw@comcast.net (Alternate Email:)

Address:
P.O. Box 1041
Carnation, WA, 98014
Phone: (425) 333-4848

Note: The Filing Id is 20250623103729D1721113